THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING article 38(a) of the Convention o n the International Maritime Organization concerning the functions of the Marine Environ ment Protection Committee conferred upon it by the international conventions for the pre vention and control of marine pollution, RECALLING ALSO that the International Conferenc e on the Safe and Environmentally Sound Recycling of Ships held in May 2009 adopted the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of S hips, 2009 (the Hong Kong Convention) together with six Conference resolutions, NOTING t hat regulation 16.1 of the annex to the Hong Kong Convention requires that Ship Recyclin g Facilities which recycle ships to which the Convention applies, or ships treated - Kon g Convention) together with six Conference resolutions, NOTING that regulation 16.1 of t he annex to the Hong Kong Convention requires that Ship Recycling Facilities which recyc le ships to which the Convention applies, or ships treated similarly pursuant to article 3.4 of the Hong Ko ng Convention, shall be authorized by a Party taking into account the guidelines developed by the Organization, NOTING ALSO that regulation 15.3 of the annex to the Hong Kong Convention requires that each Party shall establish a mechanism for ens uring that Ship Recycling Facilities comply with the requirements of the Convention incl uding the establishment and effective use of inspection, monitoring and enforcement prov isions, and that such a mechanism may include an audit scheme to be carried out by the C ompetent Authority(ies) or an organization recognized by the Party, taking into account guidelines developed by the Organization, BEARING IN MIND that the International Confere nce on the Safe and Environmentally Sound Recycling of Ships, in its resolution 4, invit ed the Organization to develop Guidelines - BEARING IN MIND that the International Confe rence on the Safe and Environmentally Sound Recycling of Ships, in its resolution 4, inv ited the Organization to develop Guidelines for global, uniform and effective implementa tion and enforcement of the relevant requirements of the Convention as a matter of urgen cy, HAVING CONSIDERED, at its sixty-third session, the draft 2012 Guidelines for the aut horization of ship recycling facilities, developed by the Working Group on Ship Recyclin g, 1.

ADOPTS the 2012 Guidelines for the authorization of ship recycling facilities, as set ou t in the Annex to this resolution; 2.

INVITES Governments to apply the Guidelines as soon as possible, or when the Hong Kong C onvention becomes applicable to them; and 3.

REQUESTS the Committee to keep the Guidelines under review.

RESOLUTION MEPC.211(63) A